IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

Item No. 403
New IA/274/ND/2023 in
CP(CAA)91/ND/2022

IN THE MATTER OF:

Shree Durga Home Appliances Private limited ... Applicant
With
Summer Cool Home Appliances Limited

Order under Section 230-232 of Companies Act, 2013.

Order delivered on 08.08.2023

CORAM:
MR. ASHOK KUMAR BHARDWAJ,
HON'BLE MEMBER (JUDICIAL)
DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Ramesh Chandra, Adv.
For the Respondent :

ORDER

The Second Motion Petition qua approval of scheme of amalgamation could not be preferred within the prescribed statutory period. Nevertheless, the applicants have preferred IA No. 274/ND/2023 for condonation of delay in filing the petition. Issue notice to RD & RoC qua I.A. for condonation of delay. Learned Counsel for the applicants undertake only to serve notice upon the said authorities by all prescribed modes viz. registered post, speed post, courier service and file affidavit of service within one week. Report by the Statutory Authorities be filed within four weeks from the date of service of notice. List the matter on 19.09.2023.

Sd/-
DR. BINOD KUMAR SINHA
MEMBER (TECHNICAL)

Sd/-
ASHOK KUMAR BHARDWAJ
MEMBER (JUDICIAL)

Mukesh